

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-16

BALTIC AUTO SHIPPING, INC.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV and
EMPIRE UNITED LINES CO., INC.**

**RESPONDENTS' MOTION FOR AN ENLARGEMENT OF
TIME TO FILE A PETITION FOR RECONSIDERATION**

On October 25, 2017, the Commission served an Order Denying Petition for Attorney Fees. **[Doc. No. 121]**. Pursuant to FMC Rule 261 the deadline for Respondents to file a petition for reconsideration of the October 25, 2017 Order is November 24, 2017.

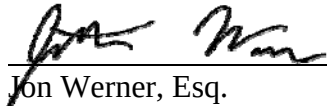
Respondents hereby request, pursuant to FMC Rule 228, a four-week enlargement of the time to file a petition for reconsideration of the October 25, 2017 Order (*i.e.* until December 22, 2017). The reason for the enlargement of time is that Respondents were, until recently, unable to devote the time necessary to evaluate the Commission's ruling and the grounds cited therein to identify grounds for reconsideration. In light of the upcoming holiday Respondents require additional to prepare and file a petition for reconsideration.

As the Commission may recall, Complainant sought and obtained a 40-day extension of the time to file Exceptions to the Initial Decision **[Doc. Nos. 68 and 69]**, followed by a further 60-day extension of the time to file Exceptions to the Initial Decision **[Doc. No. 70]**, and also obtained an extension of the time to file a response to Respondents' Petition Regarding Attorney Fees **[Doc. Nos. 99 and 101]**.

Pursuant to FMC Rule 71(a) the undersigned conferred with counsel for Complainant to determine whether Complainant would oppose the relief sought, but counsel for Complainant refused to provide Complainant's position unless certain additional information was provided. Due to the timing requirements provided for under FMC Rule 228 (which incorporate the requirements of FMC Rule 102) Respondents were unable to delay this filing any further to await Complainant's ultimate position. The correspondence reflecting the parties' efforts to confer is attached hereto.

Dated this 17th day of November 2017.

LYONS & FLOOD, LLP

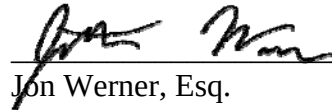
By: 
Jon Werner, Esq.
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New York, NY 10006
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(212) 594-4589 (fax)
jwerner@lyons-flood.com
Attorney for Respondents

CERTIFICATE OF SERVICE

I hereby certify that I have this day served RESPONDENTS' MOTION FOR AN ENLARGEMENT OF TIME TO FILE A PETITION FOR RECONSIDERATION upon all parties of record by first class mail and email at the addresses below, and that the original and five copies are being filed with the Secretary of the Federal Maritime Commission:

Marcus A. Nussbaum, Esq.
Attorneys for Complainant
P.O. Box 245599
Brooklyn, NY 11224
marcus.nussbaum@gmail.com

Dated this 17th day of November 2017.



Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Friday, November 17, 2017 11:27 AM
To: Jon Werner
Cc: Gerry Doyle
Subject: Re: FMC Docket No: 14-16

Mr. Werner and Mr. Doyle,

Prior to consenting or objecting to your request for an extension of time to seek reconsideration of the Commission's October 25, 2017 Order Denying Petition for Attorney Fees, I will obviously have to consult with my client.

If you recall, on October 25, 2017, you notified me in writing that your client had agreed with the Commission's decision and was not planning on taking any further action in this matter.

In light of your client's silence for the last twenty one days, my client will want to know what happened since October 25, 2017 that now causes your client to reconsider that to which he has already agreed, and for which he now needs an additional thirty days to 'mull over'.

We will also, of course, need you to explain what grounds you believe entitles your client to reconsideration. As it stands right now, it simply appears as though your client's sole intent is to continue to cause my client to incur attorneys' fees and to multiply these proceedings.

We await your advise.

Regards,

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enclosures) is not intended or written to be used, and cannot be used, for the purpose of (i) avoiding penalties under the Internal Revenue Code, or (ii) promoting, marketing or recommending to another party any matters addressed herein.

On Thu, Nov 16, 2017 at 6:22 PM, Jon Werner <jwerner@lyons-flood.com> wrote:
Mr. Nussbaum,

Respondents intend to request a 30 day extension of the time to seek reconsideration of the Commision's October 25 decision. Kindly advise by noon tomorrow as to whether Complainant will consent to, object to, or take no position with respect to this request.

Regards,

Jon Werner